

1 can get all these things out of the way.

2 There are a number of different things that
3 happen once causation is established. Fault, for
4 example, it creates a new fact for the Court and we
5 are able to use that as we move forward.

6 So causation is absolutely the critical
7 piece. They are claiming, still to this day -- that
8 you stated yesterday in front of all the jury people
9 that they are claiming there is no fault, nothing. So
10 we need to get that out of the way. Causation, we
11 can't move forward without that.

12 You stated clearly that: We don't have
13 causation for the medical, we don't have causation for
14 the other damages.

15 That is the only way this thing can go down.

16 THE COURT: I didn't say: You don't have
17 causation for medical. What I said is there are no
18 experts that can testify with respect to causation in
19 this case.

20 I am not preventing you, per my earlier
21 motion in limine, from telling the jury some aspect of
22 what happened to you.

23 These are matters of common experience. The
24 law indicates -- even in the cases that Defense
25 Counsel have cited -- allows you to discuss things
26 such as your opinion of what happened and to describe
27 your injuries.

28 However, I am just warning you that the

1 THE COURT: Sustained. All right.

2 Mr. Rosario, I just want to let the jury know
3 this. Okay?

4 Written police reports are not evidence for a
5 number of legal and evidentiary reasons; therefore,
6 you won't be receiving the written reports or copies
7 as evidence.

8 Certainly they can reference it. There is no
9 issue with regard to referencing them in their
10 examination of witness; however, as I said, you won't
11 be getting a copy.

12 If it is something that is important for you
13 to know, please record that in your notes, all right?
14 Okay.

15 So you may continue, sir.

16 MR. ROSARIO: Q. So if a person says that
17 they were assaulted and they have recorded on 911 and
18 it was recorded in body cams, is that something that
19 is important to determination of fault?

20 A. Sorry. Are you talking about a hypothetical
21 or are you talking about this incident?

22 Q. I would say, typically, in your regular
23 business operations of a day when you are out doing
24 your duty, Officer Fernandez -- and thank you very
25 much for what you are doing, my team really
26 appreciates you, we really do -- is it something that
27 if somebody states that they have been assaulted in a
28 situation, would that typically make it into a report?

1 What is the process that you use?

2 A. You get statements from the parties involved
3 and from any witnesses or any video footage.

4 Q. Okay. And if there is none, do you use
5 reconstruction logic? Or what do you use?

6 MS. NAVARATNASINGHAM: Objection, vague and
7 ambiguous.

8 THE COURT: Sustained.

9 MR. ROSARIO: Q. How do you determine if
10 there is no videos?

11 A. I just go off of the statements that I have.

12 Q. What if the pedestrian is dead or
13 incapacitated?

14 MS. NAVARATNASINGHAM: Objection, irrelevant.

15 MR. ROSARIO: Q. How do you determine that?

16 THE COURT: Overruled. We can have that
17 answer.

18 THE WITNESS: If there is video evidence or
19 witnesses, yeah.

20 MR. ROSARIO: Q. Would you use, for example,
21 the position of the bodies and the vehicles, also?

22 A. So I would not use that. We do have a
23 traffic collision investigative unit that handles any
24 kind of vehicular manslaughter or any serious
25 injuries, so they would probably do that.

26 Q. Were they present at the incident between
27 Mr. Abdelhalim and myself?

28 A. No.

1 the incident more than what was listed right here in
2 your report?

3 A. I remember responding to a vehicle collision
4 with injury but I don't remember exactly what was said
5 during the call.

6 Q. And to clarify, you weren't the first officer
7 at the scene.

8 Do you know which officer was at the scene
9 first?

10 A. Correct. I was not the first officer. I
11 don't remember who was the first officer on the scene.

12 Q. Okay. And when you arrived at the scene, you
13 mentioned here that there were signs that were
14 available.

15 There was photos in your record of a yield to
16 pedestrian and bicycle sign.

17 Do you recall that sign?

18 A. No.

19 Q. I think at this point I would like to share
20 the sign that was taken from your body cams, the body
21 cams from your team, and I -- share that image that
22 came from the police report in the police images.

23 THE COURT: Mr. Bailiff, please assist
24 Mr. Rosario.

25 MS. NAVARATNASINGHAM: Your Honor, we just
26 object to the extent it lacks foundation,
27 authentication, and we have not received a copy of
28 what he is trying to offer.

1 THE COURT: Well, it is not being offered
2 into evidence yet. So it is only being offered
3 ostensibly to refresh the officer's recollection.

4 I am going to give him some bandwidth given
5 these procedures may not all be familiar to him.

6 MR. ROSARIO: I have a set of images here
7 that will show the sign that was recorded from the
8 body cam. All right.

9 MR. ROSARIO: Q. This is Exhibit No. 11 and
10 on -- there should be a Bates stamp on the top of the
11 Pages 001, 002. And if you go to 003, you will see a
12 sign there that clearly states that those turning
13 vehicles must yield to bicyclists or pedestrians.

14 There is not the words, but there is a
15 picture of a bicycle and a pedestrian walking.

16 Now, can you tell us what direction -- on
17 Page 002, you will see the same image but a little bit
18 farther back, which also shows that turning vehicles
19 must yield to bicyclists and pedestrians.

20 Do you see those?

21 A. Yes.

22 MS. NAVARATNASINGHAM: Your Honor,
23 Mr. Rosario, does he have a copy for us? I don't know
24 what we are viewing.

25 MR. SOBATI: I thought I had submitted it
26 already. My apologies.

27 THE COURT: Do we have a set for the Court as
28 well?

1 in your experience, Officer, a person traveling on a
2 scooter should be traveling with the flow of traffic,
3 correct?

4 A. Correct.

5 Q. You did not cite Mr. Rosario for traveling
6 against the flow of traffic, correct?

7 A. Correct.

8 Q. That was your conclusion, that Mr. Rosario
9 caused the collision in violation of California
10 Vehicle Code --

11 MR. ROSARIO: Objection. Speculation.

12 THE COURT: Response?

13 MS. NAVARATNASINGHAM: Your Honor,
14 Mr. Rosario opened the door to the causation as to
15 Mr. Fernandez's conclusion based upon his
16 investigation we just walked through.

17 THE COURT: It is a lay opinion. Very well.

18 MS. NAVARATNASINGHAM: Q. Mr. Fernandez,
19 based upon your investigation, you determined that
20 Mr. Rosario caused the collision by driving on the
21 opposite side of the road against the normal flow of
22 traffic in violation of California Vehicle Code
23 21651B, correct?

24 A. Correct.

25 Q. I just asked this: You did not cite
26 Mr. Rosario for traveling against the flow of traffic,
27 correct?

28 A. Correct.

1 anything that is contained in the
2 narrative/supplemental we are addressing.

3 Two, it is not evidence.

4 Three, the officer has testified he knows
5 nothing about the supplement.

6 So it is not in the report.

7 So you are asking him to testify about
8 something he has no idea about.

9 MR. ROSARIO: No, I am not.

10 MR. ROSARIO: Q. I am asking: Do you
11 recognize there is a supplement, sir?

12 THE COURT: By virtue of his testimony, he
13 says: Yeah, supplements are prepared when there is
14 new information that has been offered in connection
15 with this incident.

16 But beyond that, he has no -- from what I
17 gather, he doesn't have any understanding, he has
18 never seen this thing before.

19 Am I correct?

20 THE WITNESS: That is correct.

21 MR. ROSARIO: All right.

22 THE COURT: So the Court --

23 MR. ROSARIO: Q. When a supplement is added,
24 new evidence is presented, what happens then?

25 A. Repeat the question.

26 Q. Say new evidence is found about a situation
27 and that supplement has been added. What then
28 happens? You, as the officer who made the original

1 Q. When you were traveling, was the scooter
2 motorized or not? Yes or no?

3 A. It wasn't motorized. The scooter, its
4 battery had failed. I was walking it. I was
5 kick-scooting it, but -- I was, you know,
6 kick-scooting it.

7 Anyways, long story short, I was going
8 northbound. I got hit from behind.

9 Q. And after you got hit and you came to, we
10 have covered a lot of that there.

11 How do you know you got hit from behind?

12 A. I have broken ribs in my back along my spine.
13 That is where the images and the --

14 MS. NAVARATNASINGHAM: Objection, calls for
15 speculation.

16 THE COURT: It is hearsay.

17 THE WITNESS: I could feel my back was
18 broken. Not hearsay. This is my feeling. I am
19 allowed to tell people what I felt when my back was
20 broken.

21 THE COURT: You may. But the way --

22 THE WITNESS: You don't get to tell me I
23 didn't have my back broken. That is absolutely
24 absurd.

25 THE COURT: Mr. Rosario, the way you framed
26 it, it elicits a hearsay response, which is not
27 allowed.

28 If you want to talk about how you felt, that

1 along, there was a lot of people in the area, or if
2 there were vehicles when crossing streets I don't ride
3 the electric scooter especially -- well, I don't want
4 to talk about the situation about being on the, quote,
5 wrong side of the road going against traffic, which is
6 absurd to me.

7 But -- so I got to about 2:40 p.m. I am
8 estimating based upon the time that I called Ben Giler
9 at my office, it must have been right around that
10 time, because he said I rang him shortly after 2:40
11 p.m. or around that time.

12 And that is when I called. I think I had
13 mentioned that yesterday during my testimony. And so
14 I got to that intersection around 5th and Tehama
15 Street and what happened there, whether I was walking,
16 kick scooting or whatever it was, I just remember
17 where I came to, all right?

18 And I was on the sidewalk down 5th Street, a
19 few feet from where the stripes and the little yellow,
20 like, bumpy markers are where you come up on to the
21 curb were at, that is where it was, and the scooter
22 was still in the crosswalk and I was on the sidewalk,
23 a couple feet past it next to a fence.

24 And I was in severe pain. I just knew my
25 back felt like I was getting crushed.

26 And like I told you guys yesterday, that is
27 when I looked up and, you know, I saw Mr. Abdelhalim
28 looking at me from his van.

1 was going to die.

2 I thought that maybe my -- my -- I knew
3 that -- I guess my lung was compromised, possibly, but
4 I thought maybe I was over reacting, like being a big
5 baby.

6 So that is where it happened. It was right
7 here, right through this area pretty high up. You
8 know, if I am standing -- I am, like, 5-7 so. And it
9 was isolated, that was the only place, the injury,
10 which matched exactly the height of his van's bumper,
11 the mirror or the lights, and it was along my back.
12 That is where I got hit. So I didn't see anything
13 coming.

14 It was just, next thing you know, you are
15 waking up on the sidewalk. And that was my experience
16 at that point.

17 You can put it down and then we can talk
18 about it again.

19 I didn't do anything wrong. I don't know
20 why, it wasn't my fault for walking through a
21 crosswalk.

22 So Mr. Abdelhalim struck me while I was
23 walking my scooter in the crosswalk in that area.

24 The scooter pretty much went down immediately
25 right where I was standing and I was tossed far enough
26 that -- that I couldn't reach my cell phone and the
27 things I had in my -- you know, I had a bag with me
28 that I got thrown onto the ground.

1 MR. ROSARIO: For the sake of Your Honor, do
2 any of the jury need to hear it a second time to
3 clarify the audio that was spoken?

4 THE COURT: I don't believe so. Ask your
5 next question, sir.

6 MR. ROSARIO: Q. Mr. Abdelhalim, before we
7 listened to this audio clip, you stated that you did
8 not make a 911 call, is that correct? Or you did make
9 a 911 call, but then also stated that you never hit me
10 with your vehicle?

11 You know, there was no contact with me with
12 your vehicle.

13 THE COURT: Which question do you wish to put
14 in? One question at a time.

15 MR. ROSARIO: Q. Mr. Abdelhalim, was that
16 you on that phone call?

17 A. Yes.

18 Q. When you called in to the 911 operator, the
19 caller, you, Mr. Abdelhalim, said that you were
20 driving your van and there was a guy in front of you
21 and that you barely hit him with anything but you are
22 calling for him.

23 That was just played for you in the audio
24 track. Are you still denying that that was you?

25 A. That is not correct.

26 Q. What is not correct, the audio?

27 MS. NAVARATNASINGHAM: Objection, vague and
28 ambiguous. I am not sure what the question is.

1 THE COURT: Why don't you rephrase another
2 question?

3 MR. ROSARIO: Q. Mr. Abdelhalim, you said "I
4 barely hit him with anything." That was heard
5 clearly. That was you, correct? Yes or no?

6 A. Correct.

7 Q. I am sorry. What did you say?

8 A. Correct.

9 Q. That was you?

10 A. No.

11 MS. NAVARATNASINGHAM: Vague and ambiguous.
12 I don't think my client is understanding the question.

13 MR. ROSARIO: Q. I asked you,
14 Mr. Abdelhalim: You said in the audio and in the --
15 did he get transcript?

16 MR. SOBATI: Yes.

17 MR. ROSARIO: Q. Mr. Abdelhalim, can you see
18 the transcript, the first entry?

19 It says: Caller. It says: Yes, yeah, there
20 is -- I was -- I am driving a van and there is a guy
21 going to cross, he crossed from me, and I barely hit
22 him with anything but I am calling for him.

23 Was that your voice?

24 A. What do mean across from me? You was on
25 sidewalk --

26 THE COURT: No, no, Mr. Abdelhalim. The
27 question was: Was that your voice?

28 THE WITNESS: Yes. That is my voice.

1 THE COURT: That is all you have to answer.

2 THE WITNESS: Thank you.

3 THE COURT: Your next question.

4 MR. ROSARIO: Q. So before we listened to
5 the audio, I had asked you clearly whether you had hit
6 me and whether you had said you -- at the time -- I
7 asked you -- did I ask you whether you had called 911
8 and you told them you hit me, and you said: No. You
9 said: No -- clearly to all of us.

10 You said: I never told the 911 operator I
11 hit you.

12 MS. NAVARATNASINGHAM: Objection, Your Honor,
13 that misstates the question. I think he asked: Did
14 you call him for me?

15 MR. ROSARIO: The Court Reporter can read
16 that back.

17 THE COURT: No. We are not going to do that.

18 Your new question is: Based upon what was
19 said earlier in your testimony, have you changed your
20 opinion about having heard now the recording? Will
21 you change your opinion about whether you struck or
22 hit Mr. Rosario?

23 That's the question.

24 MR. ROSARIO: Yeah.

25 THE WITNESS: No.

26 MR. ROSARIO: Q. You did not change your
27 story?

28 A. No.

1 Q. Okay. Mr. Abdelhalim, are you -- do you
2 typically lie, Mr. Abdelhalim?

3 MS. NAVARATNASINGHAM: Objection,
4 argumentative.

5 THE COURT: Sustained.

6 MR. ROSARIO: Q. Mr. Abdelhalim, were you
7 lying when you made the statement on the phone?

8 MS. NAVARATNASINGHAM: Objection,
9 argumentative.

10 THE COURT: Sustained.

11 MR. ROSARIO: Q. Mr. Abdelhalim, were you
12 being honest on the phone call?

13 MS. NAVARATNASINGHAM: The same objection.

14 THE COURT: Sustained.

15 MR. ROSARIO: Q. Mr. Abdelhalim, you made a
16 statement to us that you did not strike me, and on the
17 audio that we just played for you, about halfway down
18 the first page, it says: After the victim yelling at
19 me he hit me with his van.

20 Will you please look at the text there?

21 THE COURT: This is not evidence. It is the
22 recording you can rely on.

23 MR. ROSARIO: Q. Yeah. I am going to talk
24 about the recording. You clearly did on the audio,
25 and said: He was turning to the right and he was boom
26 in front of me, I just hit him, hit him with barely
27 anything.

28 Was that your voice also?

1 THE COURT: Sustained.

2 MR. ROSARIO: Q. Mr. Abdelhalim, the video
3 shows the officer creating a story for you about the
4 collision.

5 Do you recall that? Yes or no?

6 MS. NAVARATNASINGHAM: Objection, lacks
7 foundation, calls for speculation.

8 THE COURT: Sustained.

9 MR. ROSARIO: Q. Mr. Abdelhalim, were you
10 the creator of the collision that was recorded in the
11 video?

12 MS. NAVARATNASINGHAM: Objection, vague and
13 ambiguous, yeah.

14 THE COURT: Sustained.

15 MR. ROSARIO: Q. Mr. Abdelhalim, did you
16 alter your account of the event between the phone call
17 and the video interview with Officer Orengo?

18 MS. NAVARATNASINGHAM: Objection, vague and
19 ambiguous. Are you talking about they are both the
20 same?

21 MR. ROSARIO: Q. No. We have a 911 call,
22 Mr. Abdelhalim --

23 THE COURT: I don't need to hear your
24 response, yet, sir.

25 I still need to determine what the basis of
26 the objection is.

27 The objection is, again?

28 MS. NAVARATNASINGHAM: Vague and ambiguous.

1 tell us how fast you go when you turn?

2 MS. NAVARATNASINGHAM: The same objections.

3 THE COURT: Sustained.

4 MR. ROSARIO: Q. Mr. Abdelhalim, you said
5 you were going five miles per hour -- to us, just
6 recently -- right before the collision.

7 Does that still stand?

8 A. Yes, sir.

9 Q. Okay. Mr. Abdelhalim, what did you do right
10 after the collision?

11 MS. NAVARATNASINGHAM: Objection, vague and
12 ambiguous.

13 THE COURT: Well, it is not vague and
14 ambiguous. I am going to 352 it now, which means,
15 sir, you are getting into cumulative testimony.

16 I am not going to permit that. Let's move
17 on.

18 We already know what he did after the
19 purported collision.

20 MR. ROSARIO: Q. Mr. Abdelhalim, do you
21 typically offer bribes for any reason whatsoever?

22 MS. NAVARATNASINGHAM: Objection,
23 argumentative.

24 THE COURT: Sustained.

25 MR. ROSARIO: Q. Mr. Abdelhalim, is it ever
26 okay to offer --

27 THE COURT: Mr. Rosario, please stop asking
28 those questions. They are inappropriate and improper.

1 THE COURT: Wait, that is a double negative.

2 Ask the question correctly, please.

3 MS. NAVARATNASINGHAM: Q. Listen to my
4 question, okay. I know you are nervous. You are
5 doing great. Just listen to my questions, okay?

6 Did you -- when you looked in your rearview
7 mirror -- or, excuse me -- side view mirror, did you
8 see any pedestrians, scooters or bicyclists prior to
9 making your turn?

10 A. No.

11 Q. Prior to making your right-hand turn, did you
12 look in front of you?

13 A. Yes.

14 Q. And when you looked in front of you, did you
15 see any bicyclists, pedestrians or scooters in front
16 of you prior to making your turn?

17 A. No.

18 Q. After you made your right-hand turn onto
19 Tehama, did you feel any sort of impact to your
20 vehicle?

21 A. No.

22 Q. Is the reason that you stopped and pulled
23 your vehicle over was because you had heard somebody
24 yelling for help?

25 A. That is correct.

26 Q. And you testified that you got out of your
27 vehicle and you went up to Mr. Rosario; is that
28 correct?

1 Next, the party having the power to produce
2 better evidence.

3 You may consider the ability of each party to
4 provide evidence. If a party provided weaker evidence
5 when it could have provided stronger evidence, you may
6 distrust the weaker evidence.

7 Failure to explain or deny evidence.

8 If a party failed to explain or deny evidence
9 against him when he could reasonably be expected to
10 have done so based on what he knew, you may consider
11 his failure to explain or deny in evaluating that
12 evidence.

13 It is up to you to decide the meaning and
14 importance of the failure to explain or deny evidence
15 against the party.

16 I am not sure this happened, but evidence was
17 admitted for a limited purpose. During the trial,
18 certain evidence was admitted for a limited purpose.
19 I am not sure this instruction applies, but if it
20 does, you may consider that evidence only for that
21 purpose and for no other.

22 Use of interrogatories of a party.

23 Before trial, each party has the right to ask
24 the other parties to answer written questions. These
25 questions are called interrogatories.

26 The answers are also in writing and are given
27 under oath. So you must consider the questions and
28 answers that were read to you the same as if the

1 questions and answers had been given in Court.

2 Statements of a party opponent. A party may
3 offer into evidence any oral or written statement made
4 by an opposing party outside the courtroom.

5 When you evaluate evidence of a statement,
6 you must consider these questions; there are two:

7 One, do you believe that the party actually
8 made the statement?

9 If you do not believe that the party made the
10 statement, you may not consider the statement at all.

11 And two, if you believe that the statement
12 was made, do you believe it was recorded accurately?

13 You should view testimony about an oral
14 statement made by a party outside the courtroom with
15 caution.

16 Okay. We turn now to causes of action.
17 Negligence.

18 Franciscus Dylan Rosario claims that he was
19 harmed by Subhi Abdelhalim's negligence. To establish
20 this claim, Franciscus Dylan Rosario must prove all
21 the following, there are three elements:

22 One: That Subhi Abdelhalim was negligent.

23 Two: That Franciscus Dylan Rosario was
24 harmed.

25 And, three: That Subhi Abdelhalim 's
26 negligence was a substantial factor in causing
27 Franciscus Dylan Rosario's harm.

28 Basic standard of care.

1 Negligence is the failure to use reasonable
2 care to prevent harm to one's self or to others.

3 A person can be negligent by acting or by
4 failing to act.

5 A person is negligent if that person does
6 something that a reasonably careful person would not
7 do in the same situation or fails to do something that
8 a reasonably careful person would do in the same
9 situation.

10 You must decide how a reasonably careful
11 person would have acted in Subhi Abdelhalim's
12 situation.

13 Comparative negligence. Subhi Abdelhalim
14 claims that Franciscus Dylan Rosario's own negligence
15 contributed to his harm.

16 To succeed on his claim, Subhi Abdelhalim
17 must prove both of the following:

18 One: That Franciscus Dylan Rosario was
19 negligent.

20 And, Two: That Franciscus Dylan Rosario's
21 negligence was a substantial factor in causing his
22 harm.

23 If Subhi Abdelhalim includes the above,
24 Franciscus Dylan Rosario's damages are reduced by your
25 determination by the percentage of Franciscus Dylan
26 Rosario's responsibility.

27 I will calculate the actual reduction.

28 Presumption of negligence, per se.

1 see where myself -- and I refer to myself here as the
2 victim -- I was hit by a truck from behind. We want
3 to get that straight.

4 I have injuries, and my family has been there
5 through the whole thing.

6 And when a person gets struck from behind,
7 you have no option to avoid it.

8 And where we go from there, that is my
9 physical location in the video, will show that I was
10 in the crosswalk and that I was ejected onto the
11 sidewalk.

12 The big contention that comes one of the
13 people -- there are two simultaneous story lines that
14 happen and I will outline them for you.

15 On one story line, thank goodness for the
16 Defense providing this, I now know where the story
17 line came from.

18 Officer Simmons used hearsay. He goes -- and
19 Officer Simmons was quoted in the body of -- from
20 Officer Thompson, she goes: Was he going this way?

21 And Officer Thompson clearly states this --
22 and the entire basis of me riding on the wrong side of
23 the street in the bike lane was created at this
24 moment -- it says; he was going this way.

25 He even said it. I asked him and he said --
26 that little phrase there means that Officer Simmons
27 was going off of hearsay.

28 And then he says: Yeah, I was going this

1 MR. ROSARIO: Orengo and Subhi, you can see
2 the conversation between them, filling in all the
3 questions of Subhi.

4 This is what we call -- in most of America,
5 we call this cronyism, the guy goes, hey, buddy, he
6 goes, hey, man that is my store.

7 So we have a biased officer collecting the
8 testimony of a potential perpetrator at the scene of
9 an incident and they are buddy buddy.

10 They are like: Oh, man, that is my store.
11 Yeah. They are best friends.

12 Orengo is filling in the questions for him
13 left and right. You watch it with your own eyes,
14 remember I want you to use it with your own eyes.

15 Don't take my word for it. Look at the
16 videos, listen to the tone.

17 Here is the interesting thing I am still
18 trying to figure out, Subhi is still claiming at the
19 time when the officer comes up: No touch, no touch.

20 You can see my marks of the jacket on the
21 vehicle.

22 Guess what happened? Right before he wraps
23 up with Officer Orengo -- remember, the man is
24 claiming no contact with the vehicle turns around, and
25 Officer Orengo says: Hey man, accidents happen.

26 And Subhi goes: He is lucky he is not dead.

27 Why would Subhi be claiming that I am lucky I
28 am not dead, unless something happened?

1 Now the man can't tell the story straight,
2 flips on what he says to 911 and suddenly starts
3 telling police officers I am lucky I am not dead.

4 What happened that means I should be lucky
5 that I am not dead Subhi -- that is a good question --
6 unless he knows I was struck?

7 That is a really good answer to have to come
8 up with how you explain when you say I am lucky I am
9 not dead, because something happened.

10 He is just: He is lucky he is not dead.

11 For a man to claim that he found me like I am
12 a crazy man on the sidewalk and he is scared of me,
13 not touching me, to go from that to laughing and
14 joking and finding it humorous that I was lucky that I
15 am not dead.

16 MS. NAVARATNASINGHAM: Misstates the
17 testimony.

18 MR. ROSARIO: No. You can see it with your
19 own eyes. All right. I will let that one sit for
20 you. Okay. There is a yield sign.

21 (Discussion off the record).

22 MS. NAVARATNASINGHAM: Excuse me. This is
23 not Mr. Sobati's argument.

24 THE COURT: You have 10 minutes, sir.

25 MR. ROSARIO: So there is a yield sign. Duty
26 of care to yield to bikes and pedestrians, all right?

27 There is a clearly marked yield sign for
28 people who are turning.

1 THE COURT: You will have rebuttal,
2 10 minutes.

3 MR. ROSARIO: Thank you.

4 THE COURT: All right. Let's take our break.

5 All right. Let's be back here at 11:10 for
6 argument. Remember not to form or express any
7 opinions about this case, thank you.

8 (Short recess).

9 THE CLERK: Please come to order. Department
10 504 is back in session.

11 (Whereupon, the Jury entered the courtroom).

12 THE COURT: All right. We are back in
13 session in the matter of Rosario versus Abdelhalim.

14 The record should reflect all jurors are
15 present, all parties are present with Counsel.

16 And, Miss Navaratnasingham, would you like to
17 give your closing argument, please?

18 MS. NAVARATNASINGHAM: Yes. Thank you,
19 Your Honor.

20

21 CLOSING ARGUMENTS

22 MS. NAVARATNASINGHAM: Good morning.

23 Mr. Rosario started this case, and again, today,
24 reiterated the importance of candor and how people
25 shouldn't change their stories. However, as you've
26 seen from the evidence, it is Mr. Rosario who has not
27 been candid.

28 It is Mr. Rosario who has changed his story.

1 First he claims that he was pushing or kick
2 scooting an inoperable Lime scooter.

3 You saw from his complaint that was filed
4 four years ago and from discovery responses that were
5 served in December of 2021 --

6 MR. ROSARIO: Objection hearsay.

7 THE COURT: Overruled.

8 MS. NAVARATNASINGHAM: -- that Mr. Rosario
9 admits to riding a Lime scooter.

10 In fact, you saw on body cam footage where
11 Mr. Rosario himself told officers that: I was riding
12 a Lime scooter going five to ten miles per hour.

13 It has been four years and there has not been
14 any changes made to Mr. Rosario's complaint where he
15 admits to riding a Lime scooter.

16 Why does Mr. Rosario need to change his
17 story?

18 He needs you to believe that he was --

19 MR. ROSARIO: Objection, speculation.

20 THE COURT: Overruled. This is improper,
21 sir.

22 MR. ROSARIO: Oh, what she is doing or what I
23 am doing?

24 THE COURT: What you are doing.

25 MR. ROSARIO: Okay.

26 THE COURT: If you believe she misstates the
27 evidence, you may raise an objection, as she did with
28 you.

1 client made a 911 call. You saw body cam footage of
2 my client at the scene cooperating with police.

3 This is not a hit and run.

4 Fourth, Mr. Rosario references Dustin
5 Roseman.

6 You saw for yourself and you heard
7 Officer Thompson say that she interviewed Mr. Rosemont
8 and that he was very intoxicated and didn't know what
9 happened.

10 Fifth, Mr. Rosario argues that there is a
11 scuff on my client's vehicle.

12 There is absolutely no evidence that that
13 scuff was caused as a result of this incident or that
14 it is related to Mr. Rosario's leather jacket.

15 There is no evidence before you of that. The
16 scuff could have been on my client's vehicle before
17 the incident.

18 Mr. Rosario had an opportunity to produce
19 that photograph to Mr. Fernandez and inquire of him.
20 He didn't do that.

21 He also had an opportunity to show that
22 photograph to my client and ask him about it. He
23 chose not to do that.

24 The only evidence before you is that both
25 Officer Fernandez and my client testified that there
26 was no damage to my client's vehicle as a result of
27 this incident.

28 All of the evidence presented establishes

1 that Plaintiff was at fault for causing this accident.

2 Plaintiff called Officer Fernandez to the
3 stand in his case.

4 Officer Fernandez testified that Plaintiff
5 was traveling the wrong way; that he was at fault;
6 that he violated the Vehicle Code and that he caused
7 his own injuries.

8 And, in fact, Officer Fernandez testified
9 that the only reason he didn't cite the Plaintiff was
10 because he caused his own injuries.

11 Plaintiff himself got on the stand and
12 testified and actually reiterated multiple times in
13 his closing today that he was told at the scene
14 multiple times that he was at fault for causing this
15 accident.

16 You saw body cam footage. Mr. Rosario argued
17 it is hearsay but it is not hearsay when you have the
18 body cam footage of Mr. Rosario himself telling
19 officers he was traveling the wrong way in the green
20 lane. That is on the video.

21 You saw footage of five different
22 San Francisco Police Department officers conducting an
23 investigation and all determining that Plaintiff was
24 going the wrong way, that it caused the subject
25 incident and that he caused his own injuries.

26 In fact, you heard Officer Thompson say in
27 the body cam footage: Well, no wonder he didn't see
28 him -- that is, my client -- well, no wonder he didn't

1 see him, it is because he was going the wrong way.

2 As to causation, Mr. Rosario said that he
3 could not afford to hire experts. But on Wednesday,
4 he told you that at the time of the incident he had a
5 business making millions of dollars.

6 In fact, I think he told you that he wasn't
7 doing this for the money and that he could get a job
8 making very, very good money.

9 You don't have to hire experts. You can call
10 your own doctor to testify.

11 We have not heard any testimony from any
12 doctor in this case.

13 As the Judge explained, we are here to
14 determine liability and causation. Only if you
15 determine that my client was negligent, then we start
16 a second trial on damages.

17 All of the evidence shows that it is more
18 likely than not that Mr. Rosario's negligence caused
19 this accident.

20 Mr. Rosario argues that the SFPD is involved
21 in a conspiracy, the EMTs are involved in a
22 conspiracy.

23 You heard a letter, and you will see it back
24 in the Jury room, from Mr. Rosario's own lawyer, the
25 Dolan Law Firm, telling him that -- his own attorney
26 telling him that they could not in good conscious put
27 him on the stand to testify before you under oath.

28 In response, Mr. Rosario claims that the

1 Dolan Law Firm is conspiring against him.

2 Plaintiff has tried to paint my client as a
3 liar.

4 My client is not a liar. My client runs a
5 small market here in San Francisco and has run that
6 market for 45 years.

7 My client was scared and confused of
8 Mr. Rosario at the time of the incident at the scene.

9 He claims that he asked my client to call
10 police for 15 minutes.

11 But in that time, Mr. Rosario called his
12 sister and an employee, not 911.

13 He claims that he felt like he was dying at
14 the scene but he refused ambulance transportation to
15 the hospital.

16 As I stated before, this case is simple. My
17 client checked his mirrors, it was clear. He made a
18 legal right turn.

19 It is more likely than not based on the
20 preponderance of the evidence that Plaintiff was
21 traveling the wrong way, he failed to yield to my
22 client who was completing his turn, it was more likely
23 than not that Plaintiff was negligent and caused his
24 own injuries.

25 If after hearing all of the evidence you
26 still don't know who was negligent, then that means
27 that Mr. Rosario did not meet his burden of proof and
28 that it cannot be found that my client was negligent.

1 new evidence or new information has been inserted by
2 yourself.

3 So those two clauses alone, there was no
4 request for a code here. You provided a code.

5 Then the second one, they asked for a code
6 which was outside -- which was extraneous information
7 that was not introduced in the evidence.

8 That is grounds for a mistrial.

9 MS. NAVARATNASINGHAM: Your Honor,
10 Officer Fernandez -- the question specifically was
11 asked to Officer Fernandez, who testified -- excuse
12 me -- his testimony about the term of a vehicle. So
13 to provide that clarification of a legal definition
14 from the Vehicle Code, we think it is appropriate.

15 As to the other sections that was simply
16 asking for another Jury instruction and the Court
17 instructed them not to consider that, and there is no
18 evidence there has been any prejudice to Plaintiff
19 because of that.

20 MR. ROSARIO: Absolutely that is prejudice.
21 The officer and the Defense had an opportunity to
22 enter that Vehicle Code as well as the definition of a
23 vehicle in their evidence. They did not do that.
24 Inserting that information into the Jury after the
25 fact, after they have gone into the sealed room back
26 there, essentially, is extraneous influence over the
27 Jury and their knowledge about this case.

28 Secondly, them asking for that information in

1 question number one means that either somebody has
2 accessed external information specifically about
3 vehicle codes in order to clarify.

4 The Defense should have also -- if they
5 wanted to have those codes in there, they should have
6 provided them to the Jury. They did not.

7 Both of those facts prove there is extraneous
8 Juror misconduct of accessing external information
9 that severely prejudices my case.

10 THE COURT: All right. Is the matter
11 submitted?

12 MR. ROSARIO: Yeah. Thank you, Your Honor.

13 MS. NAVARATNASINGHAM: Yes.

14 THE COURT: All right. First, the motion for
15 a mistrial is denied.

16 With regard to Jury request form number one,
17 first of all, you did not object to the language that
18 was submitted to the Jury.

19 The Court presented that response in Jury
20 request number one to each party before delivering it
21 to the Jury.

22 You've waived that request, sir.

23 In that matter, with regard to Jury request
24 form number one, the Court answered: You may not
25 consider Vehicle Code Sections 22107 and or 21804
26 subdivision A, nor will the Court instruct the Jury on
27 those provisions.

28 That is a sufficient instruction for the Jury

1 to abide by.

2 There has been no evidence that the Jury has
3 considered that as a part of its deliberations.

4 Further, I will point out -- I don't think I
5 needed to point this out -- but neither Vehicle Codes
6 Section 22107 nor 21804 subdivision A were part of the
7 evidence.

8 They simply are not permitted to consider
9 that as evidence in the case, period.

10 Now turning to Jury request form number two,
11 the relevant request here from the Jury, in pertinent
12 part, "Is there a relevant legal definition of
13 'vehicle?', close quote" that we should consider in
14 assessing this testimony?"

15 Question.

16 Answer: Vehicle Code Section provides,
17 quote, "a vehicle is a device by which any person or
18 property may be propelled, moved or drawn upon a
19 highway excepting a device moved exclusively by human
20 power or used exclusively upon stationery rails or
21 tracks."

22 Vehicle Code Section 360 defines "highway"
23 as: "A way or place of whatever nature publicly
24 maintained and open to the use of the public for
25 purposes of vehicle travel. 'Highway' includes
26 street," close quote.

27 The Court -- even if this was something that
28 was gratuitous on the part of the Court, the Court is

1 defining something that is the word "vehicle" for the
2 purpose of the jury's use in this matter.

3 I find no harm nor prejudice against either
4 party in this case.

5 It is simply a neutral definition coming from
6 the Vehicle Code which defines vehicle and highway.

7 MR. ROSARIO: Inaccurate, Your Honor. You
8 enhanced it by adding that highways also indicates
9 street.

10 That is not in the actual black-letter law.
11 You enhanced the statement and you sent that back.

12 That is a direct influence over the Jury.

13 THE COURT: Sir, do you want to take a look
14 at this code section?

15 It says, "Highway includes street", close
16 quote.

17 MR. ROSARIO: Understood.

18 THE COURT: The answer to Jury request number
19 three, which provides, in pertinent part, "If our
20 finding is yes to question one in the verdict form and
21 our finding is no to question number two in the
22 verdict form, what are the implications of that for
23 the Defendant?" The answer is: Please follow the
24 instruction that follows question two.

25 I don't think I need to reiterate that
26 question.

27 "Please follow the instructions that follow
28 the yes-or-no query after question two."

1 That's all I need to put.

2 I am not going to indicate what the
3 implications are or anything else about their
4 decision.

5 It's frankly not relevant or pertinent to
6 what they have to decide in this matter.

7 The Court's going to complete that, and if
8 you have an objection, you can make that now, sir.

9 MR. ROSARIO: Of course we have an objection.
10 Not on the other clarification as to the instructions
11 in the verdict form as they were written by the
12 Defense that I agreed to.

13 I would like to bring to the Court's
14 attention on the other matter, and make sure that is
15 preserved on the record, that we asked for the
16 mistrial due to extemporaneous information being
17 accessed by the Jury.

18 THE COURT: Sir, it is denied.

19 MR. ROSARIO: I understand.

20 THE COURT: The language states, in pertinent
21 part: "Please follow the instructions after you
22 answer yes or no to question two.

23 You will have a copy of that. The clerk will
24 hand you a copy of each question -- the response to
25 question three.

26 (Short recess).

27 THE BAILIFF: Department 504 is now in
28 session.

1 noted. They are overruled and the Court believes that
2 this is within its discretion to issue these responses
3 in order to clarify for the Jury some issues that they
4 have raised by way of their requests.

5 MR. ROSARIO: So at this point, we are
6 reconsidering on motion -- or on the questions in
7 number one, based upon the fact that there is evidence
8 of external extemporaneous access. This is a second
9 chance here.

10 Again, we are requesting for the mistrial,
11 stating that we feel there is an objection to that.
12 And as of our time right now, we are again
13 reconsidering for the objection that the
14 extemporaneous information about vehicle codes shows
15 that there is evidence and prejudice against the
16 Plaintiff's position based upon external research.

17 We are, again, objecting. We feel that there
18 is absolutely one hundred percent evidence of
19 extemporaneous Juror misconduct on the record, on the
20 record this time.

21 THE COURT: Very well. It is overruled.
22 Anything further?

23 MR. ROSARIO: I guess that is it.

24 Does that settle the record?

25 THE COURT: I think so. Anything else?

26 MR. ROSARIO: Yeah. We believe that --

27 THE COURT: No, sir. You have already
28 provided the Court and submitted your arguments to

1 Very well. The verdict appears to be
2 correctly dated and signed.

3 Madam Clerk, would you read the verdict into
4 the record, please.

5 THE CLERK: Superior Court of California in
6 and for the County of San Francisco, Unlimited
7 Jurisdiction.

8 Franciscus Dylan Rosario, Plaintiff versus
9 Subhi Abdelhalim, individually, and dba Sonoma Liquor,
10 Does 1 to 50, Defendants; Case No. CGC-21-594102.
11 Verdict.

12 We answered the questions submitted to us as
13 follows:

14 One: Was Subhi Abdelhalim negligent?

15 Answer: No.

16 Signed and dated April 23, 2025 by the
17 Presiding Juror.

18 THE COURT: Very well.

19 Mr. Rosario, would you like to poll the Jury?

20 MR. ROSARIO: Excuse me?

21 THE COURT: Do you wish to poll the Jury?

22 MR. ROSARIO: How does that work?

23 THE COURT: Well, we will ask the 12 jurors
24 whether that is the verdict that they have agreed upon
25 as read by the clerk.

26 Do you wish to have that done?

27 MR. ROSARIO: Yeah, of course.

28 THE COURT: Very well, Madam Clerk.

1 THE CLERK: For question one: Was
2 Subhi Abdelhalim negligent?

3 Answer: No.

4 If this was your true and correct verdict as
5 you answered, please raise your hand.

6 Let the record reflect that nine jurors have
7 raised their hand.

8 THE COURT: Very well.

9 All right. Do the parties waive reading of
10 the verdict as recorded? Mr. Rosario?

11 MR. ROSARIO: Excuse me?

12 THE COURT: I am going to have the clerk
13 record the verdict now.

14 MR. ROSARIO: Okay.

15 THE COURT: Do you waive reading of the
16 verdict as recorded; in other words, do we have to
17 read the verdict again?

18 MR. ROSARIO: For the record, let's go ahead
19 and please do that.

20 THE COURT: Very well.

21 MR. ROSARIO: Yes.

22 THE CLERK: From the top down?

23 THE COURT: Yes.

24 THE CLERK: Superior Court of California in
25 and for the County of San Francisco Unlimited
26 Jurisdiction, Franciscus Dylan Rosario, Plaintiff
27 versus Subhi Abdelhalim, individually, and dba Sonoma
28 Liquor, Does 1 through 50, Defendants. Case No.

Case Information

CGC-21-594102

FRANCISCUS DYLAN ROSARIO VS. SUBHI ABDELHALIM ET AL (Unlimited)

Register of Actions

Date	Proceedings	Fee
Apr-22-2025	EXHIBIT LIST FOR DEFENDANTS FILED	d
Apr-22-2025	JURY INSTRUCTIONS	d
Apr-22-2025	JURY TRIAL SET FOR APR-22-2025 IS HELD AND CONTINUED TO APR-23-2025 AT 9:00 AM IN 504 FOR FURTHER JURY DELIBERATIONS. JUDGE: GARRETT L. WONG; CLERKS: KIM SEPTIEN / R. SAHATJIAN. REPORTER: D. SOUZA CSR#3893 209-629-1921; DMSOUZA@GMAIL.COM, (504).	
Apr-22-2025	SUBMISSIONS BY PLAINTIFF RECEIVED BY THE COURT	d
Apr-23-2025	REMOVED FROM JURY TRIAL CALENDAR SET FOR APR-23-2025 - JURY VERDICT.	
Apr-23-2025	JURY VERDICT	d
Apr-23-2025	ORDER & STIPULATION TO RETURN ALL TRIAL EXHIBITS & DEPOSITIONS TO RESPECTIVE COUNSEL FOR SAFE KEEPING	d
Apr-23-2025	JURY NOTES -DURING DELIBERATION	d
Apr-24-2025	RECEIPT OF RETURNED EXHIBITS	d
Apr-25-2025	THE COURT ORDERED THE FOLLOWING JUDGMENT ON VERDICT ENTERED: IT IS ADJUDGED THAT DEFENDANT ABDELHALIM, SUBHI INDIVIDUALLY, AND DBA SONOMA LIQUOR DOES 1 TO 20 ABDELHALIM, SUBHI RECOVER FROM PLAINTIFF ROSARIO, FRANCISCUS DYLAN	d
Apr-29-2025	NOTICE OF ENTRY OF JUDGMENT (TRANSACTION ID # 76177749)	e
Apr-30-2025	DECLARATION OF ALBERTO REYNA IN SUPPORT OF DEFENDANT SUBHI ABDELHALIM'S MEMORANDUM OF COSTS (TRANSACTION ID # 76186261) FILED BY DEFENDANT ABDELHALIM, SUBHI	e
Apr-30-2025	MEMORANDUM OF COSTS AND DISBURSEMENTS, \$76,308.90 TOTAL COSTS, MATURE DATE MAY-22-2025,, (TRANSACTION ID # 76186261) FILED BY DEFENDANT ABDELHALIM, SUBHI	e
Apr-30-2025	PROOF OF SERVICE BY ELECTRONIC MAIL FOR MEMORANDUM OF COST AND DECLARATION (TRANSACTION ID # 76186261) FILED BY DEFENDANT ABDELHALIM, SUBHI	e
May-05-2025	NOTICE OF INTENT AND MOTION FOR NEW TRIAL FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN HEARING SET FOR MAY-28-2025 AT 09:30 AM IN DEPT 504	IFP d
May-05-2025	DECLARATION OF PLAINTIFF IN SUPPORT OF MOTION FOR NEW TRIAL FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	d
May-05-2025	NOTICE OF MOTION AND MOTION FOR JUDGMENT NOTWITHSTANDING THE VERDICT FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN HEARING SET FOR MAY-28-2025 AT 09:30 AM IN DEPT 504	IFP d
May-05-2025	DECLARATION OF FRANCISCUS DYLAN ROSARIO IN SUPPORT JNOV MOTION FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	d
May-05-2025	NOTICE OF MOTION AND MOTION FOR NEW TRIAL FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN HEARING SET FOR MAY-28-2025 AT 09:30 AM IN DEPT 504	IFP d
May-05-2025	DECLARATION OF FRANCISCUS DYLAN ROSARIO IN SUPPORT MOTION FOR NEW TRIAL FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	d

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 SUBHI ABDELHALIM

ELECTRONICALLY
FILED
 Superior Court of California,
 County of San Francisco

01/17/2025
Clerk of the Court
 BY: YOLANDA TABO
 Deputy Clerk

SUPERIOR COURT OF CALIFORNIA

IN AND FOR THE COUNTY OF SAN FRANCISCO – UNLIMITED JURISDICTION

FRANCISCUS DYLAN ROSARIO

Plaintiff,

v.

**SUBHI ABDELHALIM, INDIVIDUALLY,
 AND DBA SONOMA LIQUOR, DOES 1 TO
 50,**

Defendants.

Case No. CGC-21-594102

**DEFENDANT SUBHI ABDELHALIM'S
MOTION IN LIMINE NO. 6 TO EXCLUDE
RECORDED MATERIALS,
PHOTOGRAPHS, OR DOCUMENTS
OFFERED BY PLAINTIFF THAT WERE
NOT PRODUCED IN DISCOVERY**

Complaint Filed: July 27, 2021
 Trial Date: January 27, 2025

**TO THE HONORABLE JUDGE OF THE SUPERIOR COURT, TO ALL PARTIES AND
 TO THEIR ATTORNEYS OF RECORD:**

Defendant SUBHI ABDELHALIM (hereinafter “Defendant”) by and through his attorneys,
 PHILLIPS, SPALLAS & ANGSTADT LLP, respectfully submits the following MOTION IN LIMINE
 and Points and Authorities in Support Thereof:

**For ease of the Court’s reference, and to avoid redundancy, Defendant hereby refers the
 Parties and the Court to the Global Statement of Facts and Declaration of Priya
 Navaratnasingham which is filed in support of all Motions in Limine herewith.**

I. AUTHORITY FOR MOTIONS IN LIMINE

The purpose of Motions *in Limine* is to prevent reference to matters which should be excluded
 from the jury’s hearing. Although a Motion *in Limine* is not specifically mentioned by any California
 statute, it has long been accepted as part of the Court’s power to conduct trial in an orderly manner. (See

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 SUBHI ABDELHALIM

ELECTRONICALLY
FILED
 Superior Court of California,
 County of San Francisco

01/17/2025
 Clerk of the Court
 BY: YOLANDA TABO
 Deputy Clerk

SUPERIOR COURT OF CALIFORNIA

IN AND FOR THE COUNTY OF SAN FRANCISCO – UNLIMITED JURISDICTION

FRANCISCUS DYLAN ROSARIO

Plaintiff,

v.

**SUBHI ABDELHALIM, INDIVIDUALLY,
 AND DBA SONOMA LIQOUR, DOES 1 TO
 50,**

Defendants.

Case No. CGC-21-594102

**DEFENDANT SUBHI ABDELHALIM'S
MOTION IN LIMINE NO. 17 TO
**PRECLUDE PLAINTIFF FROM USING
 OR REFERENCING AN ALLEGED 911
 TRANSCRIPT LOG AND AUDIO
 RECORDING AS IT WAS NOT
 DISCLOSED IN DISCOVERY, LACKS
 FOUNDATION AND IS INADMISSIBLE
 HEARSAY****

Complaint Filed: July 27, 2021
 Trial Date: January 27, 2025

**TO THE HONORABLE JUDGE OF THE SUPERIOR COURT, TO ALL PARTIES AND
 TO THEIR ATTORNEYS OF RECORD:**

Defendant SUBHI ABDELHALIM (hereinafter “Defendant”) by and through his attorneys,
 PHILLIPS, SPALLAS & ANGSTADT LLP, respectfully submits the following MOTION IN LIMINE
 and Points and Authorities in Support Thereof:

**For ease of the Court’s reference, and to avoid redundancy, Defendant hereby refers the
 Parties and the Court to the Global Statement of Facts and Declaration of Priya
 Navaratnasingham which is filed in support of all Motions in Limine herewith.**

I. AUTHORITY FOR MOTIONS IN LIMINE

The purpose of Motions *in Limine* is to prevent reference to matters which should be excluded

1 PROPOSED SPECIAL VERDICT FORM (CAUSATION AND FAULT ONLY)

2 **JURY SPECIAL VERDICT FORM – PHASE ONE: CAUSATION AND LIABIL-**
3 **ITY**

4
5 Was Defendant Subhi Abdelhalim negligent? [] Yes [] No

6
7 If your answer to Question 1 is "No," stop here, sign and date the verdict form. Was
8 Defendant's negligence a substantial factor in causing harm to Plaintiff? [] Yes [] No

9
10 Was Plaintiff FRANCISCUS DYLAN ROSARIO also negligent? [] Yes [] No

11
12 If you answered "Yes" to Question 3, what percentage of responsibility do you assign
13 to each party?

14
15 Defendant:

16
17 Plaintiff:

18
19 TOTAL MUST EQUAL 100 Percent

vide full, unaltered context. Any such evidence should be excluded under **Evidence Code § 352** as **misleading, cumulative, and unduly prejudicial**.

The California courts have repeatedly held that parties cannot engage in **trial by ambush**. In *Kennedy v. Superior Court* (1998) 64 Cal.App.4th 674, the court ruled that failing to disclose substantive evidence, including surveillance footage, during discovery **prevents** its introduction at trial. Similarly, in *Jones v. City of Los Angeles* (2019) 34 Cal.App.5th 615, the court found that any **video evidence intended for impeachment purposes must be properly disclosed in advance**, failing which it must be excluded.

CONCLUSION

For the foregoing reasons, Plaintiff respectfully requests that the Court issue an order:

1. Excluding any “Day in the Life” video or surveillance footage not properly disclosed;
2. Excluding any surveillance footage obtained **after** the discovery cut-off;
3. Prohibiting Defendant from referring to, introducing, or discussing any such video or footage before the jury.

Plaintiff further requests that if Defendant intends to use any such evidence, it must first be **authenticated outside the presence of the jury** with a showing of compliance with **discovery obligations**.

Respectfully submitted,

Dated: February 26, 2025
Franciscus Dylan Rosario
Plaintiff, in Pro Per
E: soltrinox@gmail.com
P: 650.488.7510

DECLARATION OF PLAINTIFF FRANCISCUS DYLAN ROSARIO

I, Franciscus Dylan Rosario, declare as follows:

1. I am the Plaintiff in this action and submit this declaration in support of my **Motion to Strike Defendant's Affirmative Defense of "Unforeseeable Intervening Acts"**.
2. I have personal knowledge of the facts set forth herein and, if called upon to testify, I could and would competently testify to the truth of the matters stated below.
3. Defendant **Subhi Abdelhalim**, in his Answer, has raised the affirmative defense of **"Unforeseeable Intervening Acts"**, yet has failed to provide any specific factual allegations identifying any actual intervening event.
4. Defendant's assertion of this defense is **vague, speculative, and unsupported by facts**, making it legally insufficient under **California Code of Civil Procedure (CCP) § 431.30(b)**.
5. Defendant has failed to allege:
 - (a) What specific act or event constitutes an intervening cause;
 - (b) How such act or event was truly **unforeseeable** and superseded Defendant's negligence;
 - (c) Who was responsible for the alleged intervening act;
 - (d) Any factual or evidentiary support for the defense.
6. Defendant's failure to articulate facts supporting this defense **prejudices my ability to respond** and creates unnecessary litigation disputes.
7. As a result, I request that the Court **strike Defendant's affirmative defense of "Unforeseeable Intervening Acts"** from the Answer as improperly pled and legally insufficient.

I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

1 **DECLARATION OF PLAINTIFF FRANCISCUS DYLAN ROSARIO**

2 I, **FRANCISCUS ROSARIO**, declare as follows:

- 3 1. I am the Plaintiff in this action.
- 4 2. I have reviewed the Defendant's Answer, and the affirmative defense of alternate
5 causation lacks **any factual support or specific allegations identifying an alter-**
6 **nate cause.**
- 7 3. Defendant has failed to produce any expert reports, documentary evidence, or fac-
8 tual basis supporting this defense in discovery.
- 9 4. Based on my medical records and treating physicians' opinions, there is **no medi-**
10 **cal or factual dispute regarding the cause of my injuries**, and any suggestion of
11 an alternate cause is wholly speculative.
- 12 5. I make this declaration in support of my Motion to Strike, executed under penalty
13 of perjury under the laws of the State of California.

14 Dated: March 14, 2025

15
16 Signed By :
17 **DIGITAL SIGNATURE**
18 of Franciscus Dylan Rosario
19 u7934598720-3459745-454
20

21 Franciscus Dylan Rosario
22 Plaintiff, in Pro Per
23 E: soltrinox@gmail.com
24 P: 650.488.7510
25

4:21 PM Examination is paused. Jurors are released for the day and ordered to return tomorrow at 9:30 am. Jurors exit the courtroom. Mr. Rosario steps down from the stand.

4:23 PM Outside the presence of jurors, the Court and counsel convene. The Court clarifies how direct examination will resume tomorrow. Court and counsel discuss evidence issues.

4:43 PM Court is adjourned.

1 is no substantial evidence to support the jury's defense verdict rendered on April 24,
2 2025, and that Plaintiff is entitled to judgment as a matter of law.

3
4 This motion is based upon the following grounds:

- 5
- 6 1. **Uncontradicted evidence of liability and causation** by Defendant;
 - 7 2. **Defendant's express admission of fault** via 911 call;
 - 8 3. **Eyewitness and medical evidence** establishing impact and injury;
 - 9 4. **Improper reliance on inadmissible hearsay** to defeat Plaintiff's claims;
 - 10 5. **No reasonable jury** could find no liability based on the trial record.

11 The motion is supported by the attached Memorandum of Points and Authorities, Dec-
12 larations, Trial Transcript and Exhibits, and all matters of which judicial notice is re-
13 quested.

14

15 **MEMORANDUM OF POINTS AND AUTHORITIES IN SUPPORT OF MO-**
16 **TION FOR JUDGMENT NOTWITHSTANDING THE VERDICT**

17 (CCP § 629)

18 **I. INTRODUCTION**

19 Plaintiff respectfully moves for judgment notwithstanding the verdict (JNOV) because
20 the jury's defense verdict is legally unsupported by any substantial evidence. Where
21 no reasonable jury could reach the verdict rendered, the Court has a duty to correct the
22 judgment under CCP § 629.

1 **D. Defense Relied Solely on Inadmissible Hearsay**

2
3 Officer Fernandez testified that Plaintiff was “riding the wrong way” in a bike lane —
4 based on third-party hearsay. He admitted under oath he had no personal knowledge.
5 The Court refused to issue a limiting instruction under CACI No. 219 or Evidence
6 Code § 355, allowing the jury to misuse this statement to absolve Defendant.

7
8 **E. No Reasonable Jury Could Find No Liability**

9
10 Where liability is clear and uncontradicted, and defense relies exclusively on hearsay
11 and speculative testimony, JNOV is required. (Estate of Wallace (1971) 17 Cal.App.3d
12 771, 778–779.)

13
14 **IV. CONCLUSION**

15 The jury verdict in this case lacks legal support and contradicts binding evidence. This
16 Court must enter judgment in favor of Plaintiff.

17
18 **RESERVATION OF RIGHTS**

19
20 Plaintiff expressly reserves all rights to pursue appellate review, writ relief, sanctions,
21 and judicial or disciplinary complaints against any party or judicial officer whose con-
22 duct has resulted in structural error, due process violations, or ethical breaches in these
23 proceedings. Nothing herein shall be construed as a waiver, acquiescence, or election
24 of remedies.

25
26 Respectfully Submitted,
27

1 **ATTACHMENT 5B**2 ***PLAINTIFF DESIGNATION OF REPORTERS TRANSCRIPT***

3

No.	Date	Proceeding / Description
() 1.A	Jan 27, 2025	Master Calendar Assignment / Trial Readiness: Judge assigned (triggered CCP §170.6 deadline); Rosario appeared.
1.B	Dept 504. Full Day	Prev. Prepared ALESIA L. COLLINS, CSR 7751
() 2.A	Jan 28, 2025	Trial Management / Case Status: Pretrial issue discussion; Rosario raised evidentiary surprise.
2.B	Dept 504. Full Day	YES: Prev. Prepared - ANGIE DINER CSR 8591
() 3.A	Feb 3, 2025	Discovery Reopening / Pretrial Motions: Plaintiff requested reopening discovery and relief for withheld records.
3.B	Dept 504. Full Day	YES: Prev. Prepared - LAURA AXELSEN CSR 6173
() 4.A	Feb 18, 2025	Motions in Limine: Court ruled on MILs including exclusion of medical records and expert limits.
4.B	Dept 504. Full Day	YES: Prev. Prepared - S. CARRANZA, MISSING?
() 5.A	Feb 28, 2025	Exhibit and Witness Disclosure / Pretrial Objections: Oral argument on objections and admission issues.
5.B	Dept 504. Full Day	YES: Prev. Prepared - JAIME PLY, CSR 13323
() 6.A	Apr 1, 2025	Day 1 of Trial (Preliminary objections): Rosario's CCP §170.6 challenge denied; voir dire and introductory proceedings.
6.B	Dept 504. Full Day	YES: Prev. Prepared - Dennis M. Souza CSR 3893
() 7.A	April 2, 2025	Day 2 of TRIAL- Motions in Limine
7.B	Dept 504. Full Day	YES: Prev. Prepared - Dennis M. Souza CSR 3893

1 So can you tell me why they're here? I assume
2 they're Mr. Rosario's --

3 MR. JESSUP: Former counsel.

4 THE COURT: -- former counsel, and they're here
5 on the basis of some subpoena that you issued?

6 MR. ROSARIO: Yes, Your Honor. You had
7 mentioned that the providence of the 911 transcript CDs
8 that were not passed to the defense, that you wanted me
9 to prove to you where those were to be able to provide
10 those. We had 911 emergency services send those to you
11 and Dolan had a copy since 2021.

12 THE COURT: Okay.

13 MR. ROSARIO: So they are here to testify on
14 that and provide those documents.

15 THE COURT: All right.

16 Counsel, do you have the -- I think it's the
17 compact disc or recording that Mr. Rosario referenced?

18 MR. JESSUP: Your Honor, are you talking about
19 the -- well, there's a bunch of things. We have, and
20 was produced to defense counsel, body cam footage, about
21 five videos, as well as the 911 audio, as well as the
22 CAD log. In addition --

23 THE COURT: Okay. Sorry. I'm trying to take
24 this down.

25 A body cam and what else did you provide?

1 MR. JESSUP: Thank you.

2 THE COURT: All right. Ms. Navaratnasingham.

3 MS. NAVARATNASINGHAM: Yes, Your Honor.

4 So this is news to me. We didn't realize that
5 prior to handling counsel may have received it, and I
6 can't confirm whether that was produced. I take
7 counsel's word, of course, but we -- I can represent to
8 you that our office did not receive the 911 call until
9 the day of the MSC -- the day before the MSC and that
10 was an attachment link. There was no sort of ability to
11 verify whether that was accurate or not.

12 And we were not present -- our office was not
13 on the case when Mr. Rosario's deposition was taken
14 either.

15 THE COURT: I see. Okay.

16 I think there are certain copies of some
17 materials that have been submitted by Mr. Rosario. I
18 think we did get a copy of a reply from someone with the
19 custodian of records for -- it may have been the fire
20 department. Am I correct?

21 You issued a subpoena, Mr. Rosario, for some
22 documents, and they said they no longer have them. I
23 think that was the response.

24 MR. ROSARIO: We were concerned, Your Honor --

25 THE COURT: No. I'm just asking you whether --

1 So I don't find any prejudice with respect to
2 defendant in this matter. He's essentially -- he
3 essentially missed the discovery deadline and he's not
4 executed his request ex-parte or otherwise, written, as
5 required by the local rules and by the code to obtain
6 a continuance for good cause.

7 Very well.

8 MS. NAVARATNASINGHAM: For the record, I think
9 you said "defendant" but you meant "plaintiff."

10 THE COURT: I meant plaintiff. I'm sorry.

11 MS. NAVARATNASINGHAM: Thank you.

12 THE COURT: I did mean plaintiff's motion to
13 continue is denied for the reasons expressed by the
14 Court.

15 Very well. There's some other things that we
16 have to take up. There's the balance of the motions in
17 limine and also there's some issue with regard to
18 medical reports which have been presented to the Court
19 this morning. I've not seen those medical reports.

20 And is there some issue? And I have no idea
21 what defense has to say about these medical reports
22 other than they're there, except we have no expert
23 witnesses to talk about them, even if they were
24 admitted. It would require some testimony about the
25 nature of those documents.